DIRECTION

Doc Type	Form	**Issue Date**	1 September 2021
Doc. No.	SOP-APS-001	**Eff. Date**	1 September 2021
IP	Food Safety Agency (Pty) Ltd	**Rev. Date**	1 January 2023
Designed by	N Bergh	**Revision**	V5
Approved by	Chief Executive Officer		

Producer/Importer/Butcher/Retailer Facility	Superspar Sibasa
Owner / Manager / Representative	Tali
Physical Address	Miluwani Shop 11, Mphephu Drive, Post Office Street
E-Mail Address	Tshimangadzo@sparvenda.co.za
Contact Number	0159633500
Date of Visit	03/12/2025
Nature of Inspection	Inspection
Direction Reference Number	Superspar Sibasa/143/03/12/2025/03

The products listed and described below and which have been marked or pointed out by me personally, are being sold / imported, are in contravention of Section 3 (1) of the Agricultural Production Standards Act, 1990(Act 119 of 1990), read in conjunction with the relevant regulations regarding the sale of products in terms of Section 15 of the Act.

☑ **DIRECTION:** You are hereby directed in terms of **Section 3A, (1) (b)** of the said Act to:

Rectify the non-conformity as mentioned below before or on **03/12/2025**

☐ **SEIZURE:** The owner or person in charge of the place, premise or conveyance failed to comply with the direction (Number: _____) issued in terms of section 3A (1)(b) of the said Act and thereby committing an offence in terms of section 11 (1)(d). The product is therefore seized by the Executive Officer: Agricultural Product Standards in terms of section 7 (1)(c) and 8 of the said Act with immediate effect.

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Nature of Direction: Marking Requirements / Container and Outer Containers

Rectify the non-conformity as mentioned below before or on: **03/12/2025**

DEVIATIONS (NON-CONFORMITIES)

Point	Product Name	Nature of Deviation from Regulation	Regulation Number
1	Nesta Foods Factory/Chicken Banger	Marking Requirements - Appropriate Product Name	[Reg. 7(1)(a) & 8]
2	Nesta Foods Factory/Chicken Banger	Marking Requirements - Country of Origin	[Reg. 7(1)(e) & 11]
3	Nesta Foods Factory/Chicken Banger	Marking Requirements - Restricted Particulars (Section 6 of APS Act)	[Reg. 13]

Comments (if found)

1. Incorrect indication of the appropriate product name as "Chicken Banger". The product contains MDM.
   - The product name "Chicken Banger" is not indicated in letters of the same type.
2. Incorrect indication of the country of origin as "Product of South Africa"
3. The product name indicated "Chicken Banger" creates a misleading impression regarding the quality and composition of the product.

ACTIONS AND REMARK

REMARKS
Direction issued and product removed

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Restricted Particulars (if found)

Other

SIGNATURES

INSPECTOR NAME: MOKGADI SELONE

OWNER / AUTHORISED MANAGER: Tali

INSPECTOR SIGNATURE:

OWNER / AUTHORISED MANAGER SIGNATURE:

Please note:
The butchery, abattoir, production plant, retailer, processing or repacking or importer, can apply for dispensation with the Executive Officer: Agricultural Product Standards Act at the Department of Agriculture, Land Reform and Rural Development (DALRRD) previously the Department of Agriculture, Forestry and Fisheries (DAFF).